

Families and Children Manual
Section: Categories of Eligibility
Policy Manual Number: 015.010
Chapter: Deemed Newborns

Legal Authority: 42 CFR 435.4; 42 CFR 435.117; Section 1902(e)(4) of the Social Security Act

1. Policy Statement

Infants born to a mother eligible for and receiving TennCare Medicaid or Emergency Medical Services (EMS) at the time of birth are deemed automatically eligible (no income test) for TennCare Medicaid. Deemed Newborns remain eligible for one year from the date of birth. An application is not required to enroll a child as a Deemed Newborn.

Infants born to mothers eligible for TennCare Standard or CoverKids are not eligible as Deemed Newborns. A newborn or child under age 1 whose mother was not eligible for or receiving TennCare Medicaid at the time of birth is not automatically eligible and must apply for benefits.

2. Application

a. Mother Receiving TennCare Medicaid

No application is required to enroll an infant in the Deemed Newborn TennCare Medicaid category. Eligible infants are enrolled once TennCare is notified of the infant's birth.

b. Mother Receiving Emergency Medical Services

A pregnant woman may be approved for EMS for labor and delivery. If a pregnant woman applies, is determined eligible for and subsequently receives EMS on the date of her child's birth, the child should be enrolled as a Deemed Newborn from the date of birth. If the mother is found to be ineligible for EMS, then the newborn will be tested for TennCare Medicaid eligibility in the open Medicaid categories.

3. Period of Eligibility

A Deemed Newborn's eligibility begins on the date of birth, and extends to the child's first birthday.

4. Non-Financial Eligibility Requirements

To be eligible for the Deemed Newborn category an infant must:

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- a. Be under the age of 1;
- b. Have been born to a mother eligible for and receiving TennCare Medicaid or EMS at the time of birth;
- c. Continue to be a Tennessee resident.

5. Financial Eligibility Requirements

There are no financial (income) requirements for the Deemed Newborn category. If the infant's mother was eligible for TennCare Medicaid or EMS, the mother met financial requirements at the time her own eligibility was determined.

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Version History

Revision Date	Section	Section Title	Page Number(s)	Reason for Revision	Reviser
10.28.2014				Publication	
09.01.2016	1.	Policy Statement	1	Policy Clarification	AJ
09.01.2016	2b.	Application – Mother Receiving Emergency Medical Services	1	Policy Clarification	AJ
09.01.2016	3.	Period of Eligibility	1	Policy Clarification	AJ
02.01.2018	1.	Policy Statement	1	Policy Change	TN
02.01.2018	4.	Non-Financial Eligibility Requirements	1	Policy Change	TN